

24STCV27348 24STCV27348

County: los-angeles

Division: Civil Law and Motion

Department: 517

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STATUS OF EFFORTS TO SETTLE THE CASE

The Court will begin the hearing today by asking counsel whether settlement is still a possibility. To that end, the Court will inquire how many of the Miramontes cases actually have gone to trial and how many have settled.

PLAINTIFFS' MOTIONS IN LIMINE # 1

1 Denied. Defendant must, of course, comply with Evidence Code sections 783 and 1106 if it seeks to introduce evidence of the sort addressed by Plaintiffs' motion.

2. Granted. The motion was unopposed.

3. Denied. If the evidence at trial supports a comparative fault argument and instruction, then Defendant may request it. The motion prematurely seeks to bar this.

4 Granted

5 Denied. The Court will ask Plaintiffs' counsel at the hearing whether there is any caselaw that supports this motion. The Court is unaware of any and hence the tentative decision to deny the motion.

6 Granted in part. The use of electronic tools in connection with the opening statement is permissible. But the Court cannot up front approve everything and anything that is part of the electronic presentation. Counsel must meet and confer about the evidence that will be presented.

DEFENDANT'S MOTIONS IN LIMINE

1 Denied. Overbroad and premature, as Plaintiffs correctly argue in opposition to the motion.

2 Granted, but only along the lines urged by the Plaintiffs in their opposition to the motion.

#3 This is the MIL about the aviary. Do Plaintiffs oppose this motion?

4 Denied. The jury should hear the evidence that the Defendant seeks to exclude in this motion.

#5 Denied.

VOIR DIRE

Is there a written questionnaire that counsel have used in the other Miramonte cases that went to trial?

PROPOSED STATEMENT OF THE CASE

The three Plaintiffs allege that when they were children, they attended Miramonte Elementary School, which is part of the Defendant Los Angeles Unified School District ("LAUSD"), and that as students there they were sexually by a Miramonte teacher, Mark Berndt. The Plaintiffs further allege that Berndt's misconduct has caused them to suffer significant harm. The Plaintiffs contend that LAUSD personnel were negligent in supervising Berndt and that therefore LAUSD must pay money to the Plaintiffs to compensate them for the harm they have suffered. LAUSD denies that its administrators were negligent and disputes the nature and extent of the harm and damages that the Plaintiffs are claiming.

JURY INSTRUCTIONS, VERDICT FORM, AND EXHIBITS

At the hearing, the Court will ask counsel to offer information regarding what jury instructions were given, what verdict form was used, and what exhibits on the joint exhibit list in this case were admitted/excluded in the Miramonte cases that have gone to trial.

THE COURT'S ENGAGEMENT IN TRIAL IN ANOTHER CASE ON JULY 20

It is highly likely that the Court will be engaged in trial in another case on July 20. That is because several cases that are on calendar for trial the week of July 13 will be going to trial. All are short. But as many as 3 of them could go, more or less back to back beginning next week. The Court will discuss with counsel what this means for the timing of the trial in Jane Doe v. LAUSD.